

BARRY WOOLFSON, ESQ.
325 Broadway
Suite 402
New York, N.Y. 10007
(917) 648-8407

DATE

PROVIDER NAME
PROVIDER STREET ADDRESS
PROVIDER CITY,STATE,ZIP
Attn.: Medical Records

r.e.: PLAINTIFF vs. DEFENDANTS
Date of Accident: DATE OF ACCIDENT

Dear Sir or Madam,

Please be advised that I represent PLAINTIFF for the injuries (s)he sustained in a trip and fall/car accident (s)he was involved in on the above mentioned date. This matter is now on the trial calendar and will be coming up soon for trial. Enclosed are a subpoena, a \$15.00 check for the records, a certification and a HIPPA authorization. Please have the appropriate person fill out and sign the certifications, as well as fill out and sign the affirmation at the bottom of the Certification Form. This will hopefully prevent us from having to subpoena someone from your office to verify the records at trial. Then please mail a copy of the certified records, along with the certification to Subpoena'd Records ROOM NO. at the Supreme Court of VENUE COUNTY, COURT STREET ADDRESS, COURT CITY,STATE,ZIP. If there is any additional charge for same, please advise me by fax at (646) 304-8402. If there are any questions or problems, please call me at the above listed number. Thank you for your anticipated cooperation.

Sincerely,

Barry Woolfson

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF (VENUE)

-----X
PLAINTIFF,

Index No.: INDEX NO.

Plaintiff

SUBPOENA DUCES

-against-

TECUM

DEFENDANTS,

Defendants.

-----X

THE PEOPLE OF THE STATE OF NEW YORK

TO: PROVIDER NAME
PROVIDER STREET ADDRESS
PROVIDER CITY,STATE,ZIP

GREETINGS:

WE COMMAND YOU, that all business and excuses being laid aside, that you produce the below listed records, at the Supreme Court, VENUE COUNTY, Subpoena'd Records ROOM NO., COURT STREET ADDRESS, COURT CITY,STATE,ZIP, on or before RETURN DATE at 9:30 a.m., at the time and place aforesaid, certain items or documents now in your custody or under your control which are more particularly described as: Certified copy of any and all medical records, surgical records, ambulance call reports, treatment records, diagnostic test results and billing records relative to the treatment of plaintiff, PLAINTIFF, d/o/b DOB. Such treatment commenced on or after DATE OF ACCIDENT. This subpoena, in order to be valid, must be accompanied by a HIPPA compliant medical authorization, executed by the party releasing such records.

Dated: New York, N.Y.
DATE

Barry Woolfson, Esq.
Counsel for Plaintiff
PLAINTIFF
325 Broadway,
Suite 402
New York, N.Y. 10007
(917) 648-8407

Certification Of Business Records Pursuant to CPLR 3122-a

STATE OF NEW YORK)

) SS.:

COUNTY OF NEW YORK)

_____ being over the age of 18 years hereby affirms under the penalty of penalty of perjury as follows:

I am the records custodian or other qualified person charged with the responsibility of maintaining the records described in the subpoena attached hereto.

I have the authority to make this certification.

To the best of my knowledge, after reasonable inquiry, the records or copies thereof are accurate versions of the documents described in the subpoena duces tecum that are in the possession, custody, or control of this office.

To the best of my knowledge, after reasonable inquiry, the records or copies produced represent all the documents described in the subpoena duces tecum, or if they do not represent a complete set of the documents subpoenaed, an explanation of which documents are missing and a reason for their absence is provided herewith.

The records or copies produced were made by the personnel or staff of the business, or persons acting under their control, in the regular course of business, at the time of the act, transaction, occurrence or event recorded therein, or within a reasonable time thereafter, and it was the regular course of business to make such records.

Signature

I affirm this _____ day of _____, _____, under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, and I understand that this document may be filed in an action or proceeding in a court of law.

Signature

SUPREME COURT

Index No.: INDEX NO.

STATE OF NEW YORK, COUNTY OF (VENUE)

PLAINTIFF,

Plaintiff,

-against-

DEFENDANTS,

Defendants.

SUBPOENA

BARRY WOOLFSON, ESQ.

Attorney for Plaintiff

PLAINTIFF

325 Broadway, Suite 402

New York, N.Y. 10007

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed documents(s) are not frivolous.

Dated: New York, New York
DATE

Barry Woolfson